BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Email: bnn.cdl@gmail.com
Petitioner, In Pro Per

ELECTRONICALLY FILED
Superior Court of California
County of Sacramento
04/01/2026
By: C. Torres Deputy

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SACRAMENTO

BRENDAN NGEHSI NEWANFORBI,	)	**AMENDED NOTICE OF HEARING**
Petitioner,	)	**ON PETITION FOR WRIT**
vs.	)	**OF MANDATE**
JEFFREY MACOMBER, in his official	)	(Code Civ. Proc. § 1085)
capacity as Secretary of the	)	
California Department of	)	Date: May 29, 2026
Corrections and Rehabilitation,	)	Time: 11:00 a.m.
Respondent.	)	Dept: 13A
		Judge: Hon. James P. Arguelles

AMENDED NOTICE OF HEARING ON PETITION FOR WRIT OF MANDATE

TO RESPONDENT JEFFREY MACOMBER, IN HIS OFFICIAL CAPACITY AS SECRETARY OF THE CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION, AND TO THE OFFICE OF THE ATTORNEY GENERAL OF THE STATE OF CALIFORNIA:

PLEASE TAKE NOTICE that the hearing on Petitioner Brendan Ngehsi Newanforbi's Verified Petition for Writ of Mandate (Code Civ. Proc. § 1085), filed January 30, 2026, and the

First Amended Verified Petition for Writ of Mandate filed February 2, 2026, in the above-entitled action, was previously scheduled for hearing on March 27, 2026, in Department 32 of the Gordon D. Schaber Superior Court. By Minute Order dated March 10, 2026, that hearing was vacated by the Honorable James P. Arguelles on the ground that the Petition had not been served upon Respondent in compliance with Code of Civil Procedure section 1096.

The hearing on the Petition has been re-set as follows:

Date: May 29, 2026
Time: 11:00 a.m.
Department: 13A
Court: Tani G. Cantil-Sakauye Courthouse
Address: 500 G Street, Sacramento, CA 95814
Judge: Hon. James P. Arguelles

The hearing will be conducted on the basis of the written briefs and oral argument. Pursuant to Sacramento Superior Court Local Rule 1.06, the Court will post a tentative ruling by 2:00 p.m. on the court day preceding the hearing. A party desiring to be heard must contact the clerk and request oral argument by the time designated in the posted tentative ruling, and must advise the clerk that all other parties have been notified.

Where remote appearances are permitted:

Zoom Link: https://saccourt-ca-gov.zoomgov.com/j/16180485362
Phone: (833) 568-8864 ID 16180485362

Please check the Civil Tentative Ruling in the case on the Public Portal at www.saccourt.ca.gov prior to your hearing date to confirm appearances and/or any updates.

PLEASE TAKE FURTHER NOTICE that the following documents and exhibits are attached hereto and served concurrently. These documents provide the operative pleadings, mandatory court assignments, procedural guidelines, and the substantive briefing in support of the Petition:

Exhibit A: First Amended Verified Petition for Writ of Mandate

Exhibit B: Notice of Case Assignment

Exhibit C: Guide to the Procedures for Prosecuting Petitions for Prerogative Writs

Exhibit D: Court Order Vacating Hearing (Notice of Vacatur dated March 10, 2026)

Exhibit E: Notice of Department Relocation (Effective April 20, 2026)

Exhibit F: Petitioner's Opening Brief in Support of Petition for Writ of Mandate

DATED: March 31, 2026

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi
BRENDAN NGEHSI NEWANFORBI
Petitioner, In Pro Per

EXHIBIT A

ELECTRONICALLY FILED
Superior Court of California
County of Sacramento
02/02/2026
By: C. Torres Deputy

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SACRAMENTO

BRENDAN NGEHSI NEWANFORBI, *Petitioner,* v. JEFFREY MACOMBER, in his official capacity as Secretary of the California Department of Corrections and Rehabilitation, *Respondent.*	Case No. 26WM000028 **FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE (No Substantive Changes)** (Code Civ. Proc. § 1085) [Alternative Writ Requested]

FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
(No Substantive Changes)

Petitioner Brendan Ngehsi Newanforbi respectfully petitions this Court for a writ of mandate pursuant to Code of Civil Procedure section 1085 to compel Respondent Jeffrey Macomber, in his official capacity as Secretary of the California Department of Corrections and Rehabilitation (CDCR), to perform the ministerial duty to conduct an individualized parole discharge determination in accordance with California Penal Code sections 3008(d)(2), 3000 et seq., and related statutes, and to set aside Respondent's denial of early discharge from parole dated December 1, 2025 (the "Discharge Review Report"). Petitioner does not seek a court-ordered discharge, but only a lawful determination conducted under the correct statutory standards.

I. NATURE OF THE ACTION

This action challenges CDCR's unlawful application of categorical policy bars that override the individualized, case-by-case statutory criteria that must govern parole discharge decisions. Specifically, CDCR denied Petitioner's discharge based on two categorical rules unsupported by statute:

1. A rigid rule under Policy 19-03 (Amended) that parolees with 10-year parole terms are ineligible for early discharge until serving at least 6.5 years; and
2. A policy requiring "completion" of sex offender treatment that CDCR itself defines as impossible to achieve before parole discharge.

Neither categorical bar appears in the governing statutes; in fact, both contradict the express statutory range ("not less than one year, up to the entire period of parole") and individualized assessment mandate. By substituting bright-line policies for individualized statutory analysis, CDCR has violated its ministerial duty under California law, exceeded its statutory authority, and rendered the words "up to" surplusage in violation of the canon that every word in a statute must be given effect.

II. PARTIES

A. Petitioner

1. Petitioner Brendan Ngehsi Newanforbi (CDC # BF3571) is currently on parole supervision in San Joaquin County under the jurisdiction of CDCR's Division of Adult Parole Operations

(DAPO), Stockton 2 GPS unit. Petitioner was originally released on parole on December 2, 2020 following conviction for violations of Penal Code section 289(a)(1)(A) (Penetration w/Force/Violence/Fear of Immediate Bodily Injury) and section 220(a)(1)(01) (Assault with Intent to Commit Specified Sex Offense). Petitioner is subject to PC 290 registration requirements and has been assigned a 10-year parole term with a controlling discharge date of December 2, 2030. Petitioner has been directly and concretely harmed by CDCR's categorical policies: despite serving approximately five years of continuous parole supervision under the operative term (December 2020-December 2025), with low risk scores, stable residence, and substantial compliance, he has been denied discharge consideration based solely on mechanical application of unauthorized time-based bars and an impossible-to-satisfy treatment completion standard. This constitutes ongoing unlawful restraint of liberty. Petitioner has a clear, present, and beneficial right to a parole discharge determination conducted in accordance with statutory requirements.

B. Respondent

Respondent Jeffrey Macomber is the Secretary of the California Department of Corrections and Rehabilitation, the official with ultimate authority over parole operations and discharge determinations. Respondent is sued in his official capacity as the officer who has the ministerial duty under Penal Code sections 3008(d)(2) and 3000 et seq. to ensure that parole discharge determinations are conducted in accordance with statutory requirements. Code Civ. Proc. § 1085.

III. JURISDICTION AND VENUE

1. This Court has jurisdiction pursuant to Code of Civil Procedure section 1085, which authorizes this Court to issue writs of mandate to compel the performance of an act which the law specially enjoins as a duty resulting from an office.

2. Venue is proper in Sacramento County Superior Court pursuant to Code of Civil Procedure section 401, as Sacramento County is the seat of state government and the location where Respondent, as Secretary of CDCR, maintains his principal office and formulates the challenged statewide policies. This venue is consistent with Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378), which successfully challenged identical CDCR policies in this Court. In the alternative, should the Court find venue more appropriate in San Joaquin County where Petitioner is supervised, the proper remedy is transfer under Code of Civil Procedure section 397, not dismissal.

IV. EXHAUSTION OF ADMINISTRATIVE REMEDIES

3. Exhaustion of administrative remedies is not required, or in the alternative, is excused for the following reasons:

A. Futility

4. Petitioner can "positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. The Discharge Review Report dated December 1, 2025 (Exhibit A hereto) specifically cites categorical policy criteria as the sole bases for denial. The Unit Supervisor Comments state:

> *"Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision."*

5. This language establishes that CDCR applies a fixed departmental criterion—the 10-year/6.5-year rule—that operates mechanically without regard to individual circumstances. Any administrative appeal would be denied based on the same categorical formula.

6. Similarly, CDCR officials have admitted under oath that CDCR policy prohibits completion of sex offender management programs prior to discharge from parole. In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order Mar. 20, 2023) (Exhibit B hereto), CDCR representatives testified that "a sex offender cannot successfully 'complete' a sex offender management treatment program while on parole." This admission establishes that any administrative appeal challenging the "incomplete treatment" ground would be denied based on the same unlawful categorical policy.

7. Both categorical bars reflect fixed CDCR policies, not individualized statutory analysis. Further administrative proceedings would be futile.

B. No Adequate Administrative Remedy

8. The administrative grievance process cannot provide adequate relief because Petitioner challenges the legality of statewide CDCR policies that exceed statutory authority. The CDCR 602 administrative grievance process is designed to address individual factual disputes, not to invalidate regulations or declare agency policies ultra vires. Horn v. County of Ventura (1979) 24 Cal.3d 605, 611 ("One need not exhaust inadequate remedies in order to challenge their sufficiency."). Administrative reviewers lack the authority to declare departmental policies unlawful or to invalidate criteria adopted by agency headquarters.

9. The Board of Parole Hearings has no administrative appeal process for discharge denials issued by DAPO. According to the Roadmap to Reentry legal guide: "To challenge a BPH decision or a parole condition set by the BPH, you do not need to file an administrative appeal—UNLESS the issue involves a disability. Since the BPH has no administrative appeal process, you can immediately file a state petition for writ of habeas corpus [or mandate]." The only adequate remedy is judicial review.

C. Pure Question of Law

10. This petition presents pure questions of law requiring no further factual development: whether CDCR's categorical policies comply with Penal Code sections 3008(d)(2) and 3000 et seq., and whether CDCR exceeded its statutory authority by imposing eligibility criteria not found in statute. Courts, not administrative agencies, are the appropriate forum to resolve statutory interpretation and ultra vires challenges. County of Contra Costa v. State of California (1986) 177 Cal.App.3d 62, 73.

V. STATEMENT OF FACTS

A. Petitioner's Parole History and Compliance

11. Petitioner was originally released on parole on December 2, 2020. As of the December 1, 2025 Discharge Review Report, Petitioner had served approximately five years of continuous parole supervision under the operative term. He has been classified as Category SA, CSRA Score: 2 (low-risk classification). The Report's reference to having 'only completed approximately 4 years of the required 6.5 years' reflects CDCR's internal accounting methods not grounded in statute and further illustrates the arbitrary nature of the challenged categorical criteria. Regardless of how CDCR internally calculates elapsed time, no statute authorizes a minimum time-served requirement for discharge eligibility. The 6.5-year bar is an unauthorized

addition to statutory criteria. Tidewater Marine Western, Inc. v. Bradshaw (1996) 14 Cal.4th 557 (agency policies adding requirements not found in statute are invalid).

12. The Parolee Dynamic Profile evaluation demonstrates: (1) stable residence with family in Stockton for eight months or longer; (2) compliance with general and special parole conditions; (3) participation in sex offender treatment with partial completion and ongoing progress (Core Phase, Block 1, Module 4/7); (4) affiliation with pro-social individuals. Despite some parole violations during the review period (related to treatment access and GPS charging, not new criminal conduct), CDCR did not pursue revocation, and Petitioner has maintained stable family residence and low risk scores.

B. The December 1, 2025 Discharge Review Report: Categorical Denial

13. On December 1, 2025, CDCR issued a Discharge Review Report (CDCR Form 1502-DR) denying Petitioner's consideration for early discharge. The Unit Supervisor stated:

> *"Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision."*

14. The Report also cites "incomplete sex offender treatment" as a basis for denial. These two categorical bars—the 10-year/6.5-year time requirement and treatment noncompletion—constitute the entirety of the substantive denial reasoning.

15. Critically, nowhere in the Discharge Review Report does CDCR cite or apply the individualized statutory criteria set forth in Penal Code sections 3008(d)(2) or 3000 et seq. The Report does not reference consultation with certified sex offender management professionals regarding individualized program duration under § 3008(d)(2). It does not cite current risk assessment scores or evidence-based evaluation of whether continued treatment is necessary for public safety. It does not weigh Petitioner's demonstrated compliance and stability. Instead, the denial rests entirely on automatic, policy-based exclusions.

C. CDCR's Categorical Policies Exceed Statutory Authority

16. The 10-year/6.5-year criterion referenced in the Discharge Review Report derives from CDCR's internal Policy 19-03 (Amended). This categorical bar does not appear in any California statute. Penal Code sections 3000 et seq. establish maximum parole terms but do not create minimum time-served requirements for discharge eligibility.

17. The "incomplete treatment" criterion flows from CDCR's longstanding policy that sex offender management programs "cannot be completed short of discharge from parole." In In re Dwyer, CDCR witnesses testified under oath that their interpretation of § 3008(d)(2) requires parolees to maintain "some connection to treatment" for the entire period of parole until discharge, making early completion structurally impossible. (San Mateo Super. Ct. Order at 4-5, 7.)

18. Following litigation in Alliance v. Macomber, CDCR adopted new regulations effective April 17, 2025 (15 Cal. Code Regs. § 3574) that explicitly state: "Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by PC section 3008(d)." Critically, section 3574(f) requires that retention determinations be "supported by good cause" as defined in Penal Code section 3000, stated in writing on Form CDCR 3043, signed by both the treatment provider and parole agent, and delivered to the parolee

within 30 days. The December 1, 2025 Report contains no such written good cause determination, no Form 3043, no Containment Team Meeting (CTM) findings as required by section 3574(e), and no risk-based rationale tied to statutory criteria. This regulatory adoption constitutes an admission against interest that prior policies (and current application) were unlawful. The agency cannot simultaneously concede in regulations that early completion is possible while denying it in practice. This demonstrates bad-faith continued enforcement despite regulatory changes and constitutes arbitrary and capricious agency action.

VI. STATEMENT OF LAW

A. Code of Civil Procedure § 1085: Ordinary Mandate

19. Code of Civil Procedure section 1085 authorizes this Court to issue a writ of mandate to compel "the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station." The writ runs against the officer who holds the legal duty. Code Civ. Proc. § 1085.

20. Two essential elements must be shown: "(1) a clear, present and usually ministerial duty on the part of the respondent… and (2) a clear, present and beneficial right in the petitioner to the performance of that duty." California Ass'n for Health Services at Home v. Dep't of Health Care Services (2012) 204 Cal.App.4th 676, 683.

21. A ministerial duty arises when the law specially enjoins an act. Even if discretion is involved in applying statutory criteria, mandate lies where the agency exercises discretion under an unlawful standard or substitutes categorical rules for required individualized analysis. Pomona Police Officers' Ass'n v. City of Pomona (1997) 58 Cal.App.4th 578, 583-84.

22. The duty to apply the correct legal standard is ministerial, even where the ultimate decision involves discretion. When an agency is required by statute to apply specific criteria in reaching a decision, the agency's obligation to use those criteria (rather than substitute its own policy-based criteria) is a ministerial duty enforceable by mandate. The discretion lies in weighing the statutory factors, not in choosing which factors to consider.

23. Mandate also lies to correct an abuse of discretion, which occurs when an agency "has not proceeded in the manner required by law." Code Civ. Proc. § 1094.5(b); Pomona Police, 58 Cal.App.4th at 583-84. When an agency fails to apply statutory criteria and instead relies on unauthorized categorical policies, it fails to proceed in the manner required by law.

B. Penal Code § 3008(d): The Individualized Determination Mandate

24. Penal Code section 3008(d)(2) governs sex offender management programs for parolees placed on parole on or after July 1, 2012. It provides:

> *"Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program… as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court."*

25. The statutory phrase "not less than one year, up to the entire period of parole" establishes a discretionary range requiring individualized assessment. The word "up to" necessarily implies that program duration may be less than the full parole term. CDCR's interpretation renders the

words “up to” surplusage, violating the canon of statutory construction that every word in a statute must be given effect. People v. Rizo (2000) 22 Cal.4th 681, 685.

26. By defining “completion” as impossible before discharge and applying automatic term-based bars, CDCR converts “up to” into “always,” directly contradicting the statute’s plain language and violating its ministerial duty to perform individualized determinations.

C. Categorical Rules Eliminating Statutory Discretion Are Invalid

27. In In re Gadlin (2020) 10 Cal.5th 915, the California Supreme Court unanimously struck down CDCR regulations that categorically excluded inmates with registerable sex offense convictions from nonviolent offender parole consideration. The Court held: “This categorical exclusion conflicts with the constitutional directive that inmates… convicted of a nonviolent felony offense… shall be eligible for parole consideration.” Id. at 928.

28. The Supreme Court emphasized that “eligibility must be based on an inmate’s current circumstances—not categorical rules applied without individual consideration.” Id. CDCR cannot create “wholesale exclusions” from statutory rights. Id.

29. Similarly, In re Taylor (2015) 60 Cal.4th 1019 held that blanket parole restrictions are permissible only when “based on, and supported by, the particularized circumstances of each individual parolee.” 60 Cal.4th at 1037. These precedents establish that when agencies convert discretionary statutory authority into categorical rules, mandate relief is appropriate to compel compliance with individualized statutory mandates.

D. Superior Court Precedent

30. While not binding appellate precedent, the reasoning of recent Superior Court rulings is directly on point and persuasive regarding CDCR’s systemic failure to comply with Penal Code § 3008(d).

31. In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order Mar. 20, 2023), the court conducted an evidentiary hearing and found that CDCR’s practice of requiring treatment “for the entire term of parole, apparently without reference to the individualized performance of each parolee” vitiates the Legislature’s directive. The court found that “[d]iscretion exercised in that fashion… effectively requires all parolees participating in this program to do so for the entire term of parole.” Order at 11.

32. In Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378, Order Dec. 13, 2023), this Court overruled CDCR’s demurrer, holding that a petition alleging these exact statewide policies states a valid cause of action for ordinary mandate under § 1085. The Macomber ruling validates both the procedural vehicle and the exhaustion arguments presented here, demonstrating that this legal theory has already survived the Attorney General’s initial challenges.

VII. CAUSE OF ACTION: VIOLATION OF MINISTERIAL DUTY AND ABUSE OF DISCRETION

33. Petitioner re-alleges and incorporates by reference all preceding paragraphs.

34. Respondent has a clear, present, and ministerial duty under Penal Code sections 3008(d)(2) and 3000 et seq. to perform the ministerial duty of conducting individualized parole discharge determinations based on statutory criteria.

35. Respondent violated this duty by denying discharge based on two categorical bars not found in statute: (a) the 10-year/6.5-year Policy 19-03 (Amended) criterion, and (b) the "incomplete treatment" criterion based on CDCR's policy that treatment cannot be completed prior to discharge.

36. The Discharge Review Report also references unemployment and parole violations. However, even if these factors were proper considerations, they cannot salvage an otherwise unlawful decision premised on categorical bars. First, CDCR did not pursue revocation for these violations, indicating CDCR itself determined they did not pose a threat to public safety. Second, the violations documented in the Report relate to treatment access and GPS charging issues—not new criminal conduct or deceptive polygraph responses. Third, under 15 Cal. Code Regs. section 3574(f), violations do not automatically justify retention; CDCR must demonstrate "good cause" tied to individualized risk assessment, which the Report fails to do. Fourth, under the "taint" doctrine, when an agency relies on both proper and improper grounds, the court cannot presume the agency would have reached the same result using only proper criteria. The appropriate remedy is to vacate and remand for a lawful determination applying only statutory and regulatory criteria. See California Highway Patrol v. Superior Court (2008) 158 Cal.App.4th 726, 735 (decision based partly on improper standard must be set aside); cf. Topanga Ass'n for a Scenic Community v. County of Los Angeles (1974) 11 Cal.3d 506, 514-515 (agency must articulate findings supporting decision under proper legal standard).

37. Respondent exceeded statutory authority by imposing eligibility criteria that do not appear in any statute and that effectively rewrite the Legislature's individualized assessment framework.

38. Petitioner has been directly and concretely harmed by CDCR's categorical policies. Petitioner has served over 5 years on parole with low risk scores, stable residence, and substantial compliance, yet has been denied discharge consideration based solely on mechanical application of unauthorized time-based bars and an impossible-to-satisfy treatment completion standard. This constitutes ongoing unlawful restraint of liberty, creating both standing and ripeness for immediate judicial review. The harm is not speculative or future—it occurs each day Petitioner remains on parole supervision beyond what the statute authorizes.

39. Petitioner has a clear, present, and beneficial right to a parole discharge determination conducted in accordance with applicable statutes. Petitioner has no plain, speedy, or adequate remedy in the ordinary course of law other than this writ of mandate.

40. Absent relief from this Court, Petitioner will continue to be subjected to unlawfully prolonged parole supervision based on categorical agency rules rather than the individualized statutory criteria to which he is entitled.

VIII. RESERVATION OF FEDERAL CLAIMS

41. Petitioner expressly reserves the right to litigate any federal constitutional claims, including claims under 42 U.S.C. § 1983, in a federal forum. This petition seeks relief solely for violations of state statutory duties and state administrative law principles. Petitioner does not waive, and specifically preserves, any federal claims arising from Respondent's conduct. England v. Louisiana State Bd. of Med. Exam'rs (1964) 375 U.S. 411. This petition seeks to compel CDCR's compliance with state law, creating a judicial record of ultra vires conduct that may support later federal claims for pattern-and-practice violations under 42 U.S.C. § 1983. Because mandate addresses prospective statutory compliance, while § 1983 targets past constitutional

violations, the two remedies are distinct and non-duplicative. A favorable ruling will establish CDCR's statutory violations under state law without prejudicing federal constitutional claims. Monell v. Dept. of Soc. Servs. (1978) 436 U.S. 658.

PRAYER FOR RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

1. Issue an alternative writ of mandate or order to show cause directing Respondent to show cause, if any, why a peremptory writ of mandate should not issue;

2. Following hearing or submission, issue a peremptory writ of mandate commanding Respondent to:

   a. Vacate and set aside the December 1, 2025 Discharge Review Report;

   b. Conduct a new parole discharge determination for Petitioner applying the individualized statutory criteria set forth in Penal Code sections 3008(d)(2), 3000 et seq., and 15 Cal. Code Regs. § 3574, without reliance on categorical bars;

   c. Specifically, command Respondent to reconsider Petitioner's discharge eligibility without applying CDCR Policy 19-03 (Amended)'s requirement that a parolee with a 10-year term serve 6.5 years before discharge eligibility, and without treating 'completion' of a sex offender management program as a precondition that is definitionally impossible to satisfy prior to discharge;

   d. Determine sex offender management program length through consultation with certified sex offender management professionals and parole agents, as mandated by Penal Code section 3008(d)(2), based on Petitioner's individual progress, risk assessment, and compliance history;

   e. Apply written retention criteria as required by 15 Cal. Code Regs. § 3574, including treatment provider and parole agent assessment of progress and risk, with written documentation of good cause for any continued retention;

3. Award Petitioner costs of suit;

4. Retain jurisdiction to ensure compliance with the Court's orders; and

5. Alternatively, issue a declaratory judgment pursuant to Code of Civil Procedure section 1060 declaring that CDCR Policy 19-03 (Amended)'s 10-year/6.5-year time-based eligibility criterion is invalid as ultra vires, and that CDCR's categorical prohibition on treatment program completion prior to parole discharge violates Penal Code section 3008(d)(2) and 15 Cal. Code Regs. section 3574;

6. Grant such other and further relief as the Court deems just and proper.

Dated: February 2, 2026

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi

_____

Brendan Ngehsi Newanforbi
Petitioner, In Pro Per

VERIFICATION

I, Brendan Ngehsi Newanforbi, am the Petitioner in the above-entitled action. I have read the foregoing First Amended Verified Petition for Writ of Mandate and know the contents thereof. The same is true of my own knowledge, except as to those matters which are stated on information and belief, and as to those matters, I believe them to be true.

I further certify that the attached Exhibit A is a true and correct copy of the Discharge Review Report provided to me by CDCR on December 1, 2025.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 2, 2026, at Stockton, California.

/s/ Brendan Ngehsi Newanforbi

_____

Brendan Ngehsi Newanforbi

EXHIBIT A

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

SECTION I PAROLEE PROFILE Case Type: **PC3000(b)(5)(B)**

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

CSRA Score:	Supervision Category:	Discharge Review Date:	Controlling Discharge Date:
2	**SA**	**12-01-2025**	**12-02-2030**

Commitment Offenses:
PC289(a)(1)(A)[01] Penetration w/Force/Violence/Fear of Immediate Bodily Injury, PC220(a)(1)[01] Assault with Intent to Commit Specific Sex Offense

Imminent Discharge: [X] DNA Sample Obtained: [X] YES [ ] NO Non-Controlling Offenses: [X] YES [ ] NO

Commitment Offense Subject To PC 667.5(C): [X] YES [ ] NO Commitment Offense Subject To PC1192.7 9 (C) or 1192.8: [X] YES [ ] NO

PC 290 Registrant: [X] YES* [ ] NO * If Yes, Sex Offender Static Risk Assessment: Score: 4

Other Registration Requirements: [ ] PC 457.1 [ ] PC 186.30 [X] NONE

Circumstances of Commitment Offense (Note any weapons used or possessed during the controlling or non-controlling offense):

According to Santa Clara County Probation Officer's Report, Santa Clara Police Department officers responded to a report of sexual assault which occurred at the Santa Clara University. The Victim (V1) stated she left her friend's dormitory at 2000 hours and proceeded to her dormitory. As she was walking, a man later identified as Brendan Newanforbi, approached her from behind, picked her up and carried her approximately five feet. Newanforbi dropped V1 on the ground and inserted his fingers into her vagina. V1 screamed and resisted Newanforbi so Newanforbi fled the scene. V1 was transported to the Valley Medical Center for a SART exam. V1 sustained abrasions to her left knee, left hip area, left wrist and complained of pain to her vagina. Officers reviewed surveillance footage from cameras and showed a figure running, and a grey ford mustang fleeing the scene. On 03/03/2017, Newanforbi was stopped for speeding and taken into custody for matching the description. Newanforbi self- admitted to groping V1 and stated he had uncontrollable urges and needed help.

Prior Criminal History: (Note any history of weapons, serious or violent felonies and any other relevant criminal information):

[X] Criminal History Attached (Dated no more than 30 days prior to due date of DRR)

01/12/18-PC 289(A)(1)(A): SEXUAL PENETRATION W/FORCE/ETC, PC 220(A)(1): ASSAULT:W/INTENT TO RAPE (6 YEARS PRISON)

Special Conditions of Parole: [X] CDCR Form 1515- Addendum Attached (* If necessary.)

[ ] None [ ] Anti-Narcotic Testing [ ] Drug Treatment [X] No Alcohol [ ] Attend POC [X] * Other

Parole Violations: (Note any parole violations, arrests, pending investigations and/or dispositions incurred during this period of review)

2025-03-04 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Verbal Reprimand)
2025-06-26 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Referral to PACT Program, Verbal Reprimand)
2025-07-15 FAILURE TO CHARGE GPS TWICE PER DAY EVERY 12 HOURS FOR 1 FULL HOUR OF CHARGING COP (Verbal Reprimand)
2025-08-18 FAILURE TO PROPERLY CHARGE GPS DEVICE COP (Referral to PACT Program, Verbal Reprimand)

Gang Activity Or Affiliation: (Note any past or present involvement in any prison, criminal, or street gang)

[X] None Validated: [ ] Member [ ] Associate [ ] Affiliate [ ] Dropout [ ] Active [ ] Inactive

Gang:

Current or past activity:

Mental Health Factors (Note mental health status of the parolee and his or her compliance with any mental health treatment):

[ ] None [ ] Voluntary [X] CCCMS [ ] EOP [ ] MDO

If CCCMS/EOP/MDO: [X] Compliant [ ] Non - Compliant

[X] BHR Report Attached (Dated no more than 45 days prior to due date of DRR)

Restitution (Note any fine and/or restitution balance at the time of review, and any effort to satisfy the fine and/or restitution balance):

[X] None [ ] Satisfied [ ] Not Satisfied Amount remitted to date: $ **0** Outstanding balance: $ **0**

Employment (Note any employment, educational or vocational training):

Employment [X] None [ ] Employed [ ] Full Time [ ] Part Time

Student: [X] None [ ] Student [ ] Full Time [ ] Part Time

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Employer Name (If applicable):

Position:

Program Name (If applicable):

DISCHARGE REVIEW REPORT

CDC Number: BF3571	Print Name (Print Last, First, MI): NEWANFORBI, BRENDAN, NGEHSI	Region: N	Parole Unit: STOCKTON 2 GPS

SECTION II PAROLEE DYNAMIC PROFILE CATEGORY: SA CSRA: 2

Objective 1: The parolee has maintained residence stability in a positive living environment.

1=Has been in the same pro-social living situation for eight months or longer; or less than eight months, but at least six months, when the most recent move was to improve overall living conditions, and will continue to be available to the parolee.

Objective 2: The parolee's time has been structured around pro-social activities geared towards self-reliance.

3=Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.

Objective 3: The parolee has been compliant with his or her general and special conditions of parole.

3=The parolee has not met the rating standard for #1 or #2 above.

Objective 4: The parolee was referred and participated in programming for his or her top three criminogenic needs.

3=Failed to attend, participate, or complete.

Objective 5: The parolee has affiliated himself or herself with other pro-social individuals.

2=Parolee is seeking to terminate anti-social relationships, but still maintains some anti-social relationships.

Objective 6: Parolee has been referred to and participated in required sex offender treatment.

2=Attended and partially participated in sex offender treatment.

Parolee Dynamic Profile Recommendation: **Retain On Parole**

Aggravating Factor(s) to Consider:

Supervised Person Brendan Newanforbi is unemployed, incurred multiple parole violations during this review period, and has not completed sex offender treatment.

Mitigating Factor(s) to Consider:

Supervised Person Brendan Newanforbi has stable residence with his family.

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	NEWANFORBI, BRENDAN, NGEHSI	N	STOCKTON 2 GPS

SECTION III RECOMMENDATION

Parole Agent Recommendation:

- [ ] Retain on Parole
- [x] Discharge Denied/No Action
- [ ] Discharge Controlling Offense Approved
- [ ] Discharge Non-Controlling Offense Approved

Parole Agent Comments / Recommendation:

Objective 1: Residence - Newanforbi currently has stable residence with his family in Stockton.

Objective 2: Employment - Newanforbi is currently unemployed.

Objective 3: General/Special Conditions - Newanforbi has incurred multiple parole violations during this review period.

Objective 4: Addressed Criminogenic Needs - Newanforbi's Criminogenic Needs for Substance Abuse rated Probable and Unlikely for all other categories.

Objective 5: Pro-Social - Newanforbi does not appear to have a large social circle.

Objective 6: Sex Offender - Newanforbi is not currently titrated and is not in the maintenance phase of his treatment with HOPE.

Supervised Person Brendan Newanforbi is a 29-year-old first termer committed to the California Department of Corrections and Rehabilitation for Penal Code 289(a)(1)(A) Penetration w/Force/Violence/Fear of Immediate Bodily Injury for 6 years in state prison. Newanforbi appears to have stable residence with his family in Stockton, CA. Newanforbi is currently unemployed and not attending school. Newanforbi has incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System. Newanforbi is currently attending sex offender treatment and has not completed treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision. Continued supervision is both warranted and recommended at this time. Recommend discharge be denied at this time.

Parole Agent (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
LONG MOUA	LONG MOUA	7472	11-14-2025

Unit Supervisor Actions:

- [x] Review
- [x] Decision
- [ ] Retain On Parole
- [x] Discharge Denied/No Action
- [ ] Refer to BPH
- [ ] Discharge Controlling Offense Approved
- [ ] Discharge Non-Controlling Offense Approved
- [x] Refer to Parole Administrator

Unit Supervisor Comments/ /Decision /Recommendation:

The subject should be commended for maintaining compliance with parole supervision. The subject is unemployed, and the subject lives with his family in Stockton. The subject has no restitution obligations and, the subject has had five parole violations this period. Subject's Sex Offender Treatment Progress (HOPE): 10/15/2024 Stable 6/LSCMI 5. Level 2 below average Risk. Missed 6 sessions this Parole Period. Core Phase of treatment and working in Block 1 Module 4/7. Subject has presented homework on Victim Empathy. Does take full responsibility of offense. Subject has a relapse prevention plan to assist in his alcohol and marijuana use. Current focus on problem solving and relationship stability focusing on healthy relationships. Not eligible for titration at this time. Currently scheduled for 2 groups a week and 1 monthly individual. HOPE SOT recommends continued treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Subject is not eligible for EDC at this time due to having a 10-year parole term. Eagan has only completed approximately 4 years of the required 6.5 years of supervision. I concur with the Parolee Dynamic Profile and AOR's recommendation "Retain on Parole". Continued DAPO supervision is warranted and recommended.

Unit Supervisor (Printed Name):	Electronically Signed by:	Badge #:	Date Signed:
GARY NOGUCHI	GARY NOGUCHI	7284	11-19-2025

Parole Administrator Actions:

- [x] Review
- [x] Decision
- [ ] Retain On Parole
- [x] Discharge Denied/No Action
- [ ] Refer To BPH
- [ ] Discharge Controlling Offense Approved
- [ ] Discharge Non-Controlling Offense Approved

Parole Administrator Comments / Decision/ Recommendation:

Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time.

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Parole Administrator (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
KEELY DODD	**KEELY DODD**	**6462**	**11-19-2025**

Parolee Provided Copy (Date)

☐ Mailed By (Initials):

☐ Delivered By (Initials):

AGENT OF RECORD CONTACT INFORMATION AS OF 11/19/2025

AGENT NAME: ROJO, JOSEELYN

AGENT CONTACT: JOSEELYN.ROJO@CDCR.CA.GOV, (510) 871-7372 (Cell)

PAROLE UNIT: STOCKTON 2 GPS, 612 CARLTON AVENUE, STOCKTON, CA, 95203, (209) 948-7652

EXHIBIT B

SUPERIOR COURT OF CALIFORNIA COUNTY OF SACRAMENTO	Reserved for Clerk's File Stamp FILED Superior Court of California County of Sacramento 01/30/2026 C. Torres, Deputy
COURTHOUSE ADDRESS: Gordon D. Schaber Superior Court 720 Ninth Street, Sacramento, CA 95814	
PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi	
DEFENDANT/RESPONDENT: Jeffrey Macomber	
NOTICE OF CASE ASSIGNMENT **Proceeding for Writ of Mandate and/or Prohibition**	CASE NUMBER: 26WM000028

This case has been assigned for all purposes to the judicial officer indicated below pursuant to rule 3.734 of the California Rules of Court and Sacramento Superior Court Local Rule 2.26; it is exempt from the requirements of the Trial Court Delay Reduction Act and the Case Management Program under Chapter 2 of the Sacramento Superior Court Local Rules.

JUDGE	COURT LOCATION	DEPARTMENT
James P. Arguelles	Gordon D. Schaber Superior Court	Department 32

The petitioner shall serve all parties with a copy of this order and a copy of the Sacramento Superior Court Guide to the Procedures for Prosecuting Petitions for Prerogative Writs. The Guide is available in Room 102 of the courthouse, from the clerk of the department to which this matter has been assigned, and on the "Civil" page of the Sacramento Superior Court internet website (www.saccourt.ca.gov).

Scheduling

Contact the clerk in the assigned department to schedule any judicial proceedings in this matter, including hearings on ex parte applications and noticed motions.

JUDGE	DEPARTMENT	PHONE
Hon. Jennifer K. Rockwell	4	(916) 874-5527
Hon. Shelleyanne W.L. Chang	21	(916) 874-5924
Hon. James P. Arguelles	32	(916) 874-5682
Hon. Stephen P. Acquisto	12	(916) 874-6181

Other Information

Pursuant to Local Rule 2.26, all documents submitted for filing in this case shall be filed in person at the Civil Front Counter (Room 102) or by mail addressed to the Clerk of the Sacramento Superior Court, Attn: Civil Division-Room 102, with the exception of certain documents filed on the day of the hearing. For specific requirements, please see the Sacramento Superior Court Guide to the Procedures for Prosecuting Petitions for Prerogative Writs.

Any administrative record must be lodged with the assigned department.

Dated: 02/02/2026

By: /s/ C. Torres
C. Torres, Deputy Clerk

EXHIBIT C

SUPERIOR COURT OF CALIFORNIA
County of Sacramento
720 Ninth Street ~ Room 102
Sacramento, CA 95814-1380
(916) 874-5522 — Website www.saccourt.com

GUIDE TO THE PROCEDURES FOR PROSECUTING PETITIONS FOR PREROGATIVE WRITS

(as specified in Local Rule 2.26(E))

This guide to the procedures for prosecuting petitions for writs of mandate and other prerogative writs in the Sacramento Superior Court is made available for your general information pursuant to Local Rule 2.26(E). A protocol for each department to which writs are assigned (hereinafter "assigned writ department") supplements these procedures with respect to the filing of documents, the scheduling of hearings, and the use of tentative rulings. The protocol is available from the assigned writ department and on the "Civil" page of the court's website under Prerogative Writ Departments and Protocol.

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Filing a Writ Petition:

Step	Action
1.	File an original and two copies of the petition and a civil case cover sheet at the civil front counter in Room 102 on the first floor of the main courthouse. *Or* mail an original and two copies of the petition and a civil case cover sheet to the Civil Division - Room 102, 720 9th Street, Sacramento, CA 95814.
2.	Pay the filing fee pursuant to Government Code section 70611 in Room 102.
3.	Receive from the civil front counter clerk a Notice of Case Assignment and a copy of this Guide to the Procedures for Prosecuting Petitions for Prerogative Writs.

Serving a Writ Petition:

Step	Action
1.	Serve the writ petition on respondent(s) and real party(ies) in compliance with the requirements of Code of Civil Procedure (CCP) sections 1107 and 1088.5. Until compliance with these statutory service requirements is established by the filing of an appropriate proof of service, the court cannot hear or act on the petition.
2.	Along with the writ petition, serve copies of the Notice of Case Assignment and this Guide to the Procedures for Prosecuting Petitions for Prerogative Writs.

For service of an application for an alternative writ, see below, "Setting a Hearing on the Merits of a Writ Petition, (2) Securing issuance of an alternative writ."

Filing Subsequent Documents:

Step	Action
1.	File an original and two copies of all subsequent documents related to the writ petition either at the civil front counter in Room 102 or by mail addressed to the Civil Division - Room 102, 720 9th Street, Sacramento, CA 95814. *Exception*: Documents filed one day before or on the day of the hearing shall be filed with the courtroom clerk in the assigned writ department after any applicable fees have been paid in Room 102.
2.	File documents by fax in compliance with rule 2.303 of the California Rules of Court. Documents faxed directly to the court **will not be filed**.
3.	Specify on the first page of each document the date, time and department of any scheduled hearing to which the document applies. To set a hearing, see below, "Bringing Motions before the Hearing on the Merits of a Writ Petition" and "Setting a Hearing on the Merits of a Writ Petition."

Noticing Related Writ Cases and Possible Consolidation:

Step	Action
1.	When filing a Notice of Related Case pursuant to rule 3.300(d) of the California Rules of Court regarding two or more writ cases assigned to different judges in this court, file the Notice **in each writ case**.
2.	When filing a Response to a Notice of Related Case pursuant to rule 3.300(g) of the California Rules of Court, file the Response **in each writ case**.
3.	Serve the Notice or Response on **each party to each case**.

Note that the court proceeds with respect to related writ cases under rule 3.300(h)(1) of the California Rules of Court (CRC) as follows:

- The judges assigned to civil writ cases listed in a Notice Of Related Case filed and served pursuant to CRC 3.300(d) identify which one of them is assigned to the earliest filed case, information which should be included in the Notice of Related Case pursuant to CRC 3.300(c)(2). That judge proceeds under CRC 3.300(h)(1)(A) to determine whether the cases are related within the meaning of CRC 3.300(a).
- If the judge assigned to the earliest filed case determines that the cases are related, the judge orders the cases related and assigned to his or her department. That order is filed in each of the related cases and served on the parties to each of the related cases pursuant to CRC 3.300(i). In addition, an Amended Notice of Case Assignment, reassigning to the judge each of the related cases not previously assigned to him or her,. is filed and served upon all parties to each reassigned case. Courtesy copies of the order and Amended Notice(s) of Case Assignment are sent to the judges previously assigned to any of the related cases.
- If the judge assigned to the earliest filed case determines that the cases are not related within the meaning of CRC 3.300(a), the judge issues a minute order stating and briefly explaining the determination. This minute order is filed in each of the cases listed in the Notice of Related Case and is served on all parties to the listed cases pursuant to CRC 3.300(i).
- In response to an order determining that the cases are not related, any party to any of the cases listed in the Notice of Related Case may file a motion pursuant to CRC 3.300(h)(1)(D) to have the cases related. The motion must be filed with the Presiding judge or a judge designated by the Presiding Judge.

Applying for a Temporary Stay in Administrative Mandate Proceedings (CCP § 1094.5 (g) or (h)):

Step	Action
1.	Prepare an ex parte application for an order temporarily staying operation of the administrative decision under review in the proceeding. Identify whether the temporary stay order is requested pursuant to subdivision (g) or (h) of the CCP § 1094.5. Specify "Ex Parte" in the title of the application. Pursuant to rules 3.1201 and 3.1202 of the California Rules of Court and this Guide to the Procedures for Prosecuting Petitions for Prerogative Writs, an ex parte application for a stay order includes the following supporting documents and papers: ▪ Endorsed copy of the petition. ▪ Points and authorities, declarations and other supporting documents, including relevant portions of the administrative record if available. ▪ Proposed order to show cause why the administrative decision under review in the proceeding should not be temporarily stayed pending a hearing on the merits of the writ petition (OSC). This proposed OSC should contain: - blank spaces for the date and time of the hearing on the OSC, - an order for service of the OSC and any supporting papers not previously served with a blank space for a date of service prior to the hearing on the OSC, and - an order staying the administrative decision pending the hearing on the OSC. ▪ Proposed stay order. ▪ Notice of hearing on the petition with blank spaces for date and time (unless the stay is being requested in conjunction with an application for an alternative writ). ▪ Declaration regarding notice, as specified in rule 3.1204. In addition, CCP § 1094.5 (g) and (h) require that proof of service of a copy of the application on the respondent accompany an application for a stay. See subdivisions (g) and (h) for required manner of service.
2.	Contact the assigned writ department to reserve an ex parte hearing date and time and to determine whether the assigned writ department requires any of the documents or papers listed above in Step 1 to be filed before the hearing. Note that some writ departments hear writ matters only on Fridays.
3.	Notify respondent(s) and real party(ies) of the hearing on the ex parte stay application in accordance with rule 3.1203 of the California Rules of Court. Include the details of this notification in the declaration regarding notice prepared pursuant to rule 3.1204. **Note:** The Court prefers at least 48 hours' notice but, upon a showing of urgency, will accept less notice.
4.	If the assigned writ department does not require any of the documents listed above in Step 1 to be filed before the ex parte hearing, file and serve the documents and papers as soon as possible and no later than the time of the hearing. (See rule 3.1206 of the California Rules of Court.)

At the ex parte hearing, depending on the nature of the factual and legal issues raised by the stay application and the practical exigencies of the matter, the court will either rule on the stay application immediately or issue the proposed OSC with or without a temporary stay order pending the hearing on the OSC at a specified date and time.

If the court grants a stay at the ex parte hearing or the hearing on the OSC, the court will sign and file the proposed stay order and set a date and time for a hearing on the merits of the petition. The court clerk will record the hearing date and time in the notice of hearing on the petition, or if the court has ordered the issuance of an alternative writ, in the alternative writ.

If the Court denies a stay at the ex parte hearing or the hearing on the OSC, the court, upon petitioner's request, will set a date and time for a hearing on the merits of the petition. The clerk will record the hearing date and time in the notice of hearing on the petition, or if the court has ordered the issuance of an alternative writ, in the alternative writ.

Applying for a Temporary Stay in Traditional Mandate Proceedings (CCP § 1085):

Step	Action
1.	Follow the statutory and regulatory provisions for obtaining a temporary restraining order (TRO), an order to show cause why a preliminary injunction should not be issued (OSC), and/or a preliminary injunction, set forth in the Code of Civil Procedure (including but not limited to CCP §§ 525, 526, 527, 528 and 529) and rule 3.1150 of the California Rules of Court. These provisions constitute rules of practice for temporary stays in mandate proceedings brought under CCP § 1085 in the absence of temporary stay provisions specific to such mandate proceedings. (See CCP § 1109.)
2.	When following the statutory and regulatory procedures for obtaining a TRO and/or an OSC, comply with the ex parte procedures outlined above in "Applying for a Temporary Stay in Administrative Mandate Proceedings" and in rule 3.1201 et seq. of the California Rules of Court.
3.	If no TRO or OSC is sought, notice a motion for a preliminary injunction following the procedures set forth below in "Bringing Motions Before the Hearing on the Merits

Note that a temporary stay in proceedings on a petition for a writ of prohibition may be obtained by following the procedures set forth below under "Setting a Hearing on the Merits of a Petition, (2) Securing issuance of alternative writ." An alternative writ of prohibition, unlike an alternative writ of mandate, stays specified action by the respondent until further order of the court. (See CCP §§ 1087, 1104.)

Bringing Motions before The Hearing on the Merits of a Writ Petition:

Motions on the pleadings and other pretrial matters brought in civil actions -- including motions for change of venue, demurrers, motions to strike, motions to dismiss, discovery motions, and motions for summary judgment -- may generally be brought in writ proceedings. (See CCP § 1109.)

Motions addressing the merits of the petition in whole or in part should be calendared for a hearing at the same time as the hearing on the merits. Motions directed at resolving issues preliminary to and distinct from the issues related to the merits of the petition, such as untimeliness of the petition under an applicable statute of limitations, should be calendared before the hearing on the merits of a writ petition. The court, in the exercise of its discretion to control the order of litigation before it, may advance the hearing on a motion to a date before the hearing on the merits or may postpone a motion to the hearing on the merits when such advancement or postponement will promote the efficient conduct and disposition of the proceeding.

Because a writ petition is usually disposed of by a hearing on the merits which is limited to oral argument on written briefs and documentary evidence, the usefulness of a motion for summary judgment or summary adjudication in economically disposing of an unmeritorious case or claim is substantially reduced in writ proceedings. Thus, before bringing a motion for summary judgment or summary adjudication, counsel should carefully evaluate whether the purpose of the motion can be achieved more directly and completely through a hearing on the merits of the petition.

Step	Action
1.	Contact the assigned writ department to reserve a date and time available on the department's calendar for a hearing on the motion. Prior to reserving a date, contact the other parties to the writ petition and determine their availability on the date. Some assigned writ departments hear writ matters only on Fridays.
2.	Notice the motion in accordance with the civil law and motion procedures in CCP § 1005 and in compliance with the California Rules of Court, including rules 3.1110 through 3.1113, 3.1115, 3.1116, 3.1300, and 3.1320 through 3.1324. Comply with the page limits for memoranda set forth in rule 3.1113. If the assigned writ department uses the tentative ruling system, the notice of motion must contain tentative ruling language available from the department.

Setting a Hearing on the Merits of a Writ Petition:

If a hearing on the merits of a writ petition has not been set in conjunction with an ex parte hearing on an application for a temporary stay, it may be set either by (1) noticing a hearing on the petition or (2) securing issuance of an alternative writ. **Note:** The court prefers, as more efficient and economical for both itself and the parties, the procedure of noticing a hearing on the petition.

The date set for a hearing on the merits of a writ petition, whether by notice or alternative writ, should allow the parties to file briefs in accordance with the following schedule established in Local Rule 2.26(D):

Opening brief:	Due 45 days before the hearing
Opposition brief:	Due 25 days before the hearing
Reply brief:	Due 15 days before the hearing

Note that Local Rule 2.26(D) limits the length of opening and opposition briefs to 30 pages and reply briefs to 20 pages instead of the page limits in rule 3.1113 of the California Rules of Court.

The date of the hearing on the merits may be expedited and the briefing schedule shortened upon an application setting forth circumstances warranting an expedited hearing. The application for an expedited hearing may be made orally at a hearing for a temporary stay or alternative writ or on an ex parte basis in accordance with rules 3.1201 through 3.1206 of the California Rules of Court.

(1) Noticing a hearing on a writ petition

Step	Action
1.	Contact the assigned writ department to reserve an available date and time for a hearing on the writ petition. Prior to reserving a date, contact the other parties to the writ petition and determine their availability on the date. Writ petitions are normally heard on Fridays.
2.	Prepare and file a notice of hearing on the writ petition specifying the reserved hearing date and time. If the assigned writ department uses the tentative ruling system, the notice of hearing must contain tentative ruling language available from the department.
3.	File the notice of hearing either at the civil front counter in Room 102 or by mail addressed to the Civil Division - Room 102, 720 9th Street, Sacramento, CA 95814.
4.	Serve a copy of the notice of hearing on respondent(s) and real party(ies) no later than the time allowed for filing and serving the opening brief. If not previously served, the writ petition, the Notice of Assignment, and this Guide should also be served no later than the time for filing and serving the opening brief.

(2) Securing issuance of an alternative writ

The alternative writ is an order to show cause that calendars a writ petition for a hearing on the merits. With the exception of an alternative writ of prohibition issued pursuant to CCP § 1104, the alternative writ does not, in and of itself, accomplish a stay or afford any affirmative relief.

Note that, with the alternative writ method, two writs may be issued in the proceeding. First, the alternative writ is issued to set a hearing on the merits of the petition. Second, a peremptory writ may issue after the hearing on the merits.

Step	Action
1.	Prepare an ex parte application for an alternative writ. Specify "Ex Parte" in the title of the application. As provided in rules 3.1201 and 3.1202 of the California Rules of Court and this Guide, an ex parte application for an alternative writ includes the following supporting documents and papers: ▪ Endorsed copy of the petition. ▪ Points and authorities and any other supporting documents. ▪ Proposed order directing issuance of alternative writ. ▪ Proposed alternative writ with blank spaces for the date and time of a hearing on the petition. (Include a signature block for the clerk, not the judge.) ▪ Declaration regarding notice, as specified in rule 3.1204.
2.	Contact the assigned writ department to reserve an available date and time for an ex parte hearing on the application for an alternative writ and to determine whether the department requires the papers listed above in Step 1 to be filed before the hearing. Note that some writ departments hear writ matters only on Fridays. Also note that, absent a showing of good cause or waiver by the respondent(s) and real party(ies), some departments will not issue an alternative writ unless the writ petition and application for the alternative writ have been served on respondent(s) and real party(ies) at least five days before the ex parte hearing. (See CCP § 1088, requiring service of copy of petition in conjunction with application for alternative writ; CCP § 1107, providing a five-day period for respondent(s) and real party(ies) to respond to a writ petition after receiving service of the petition.)
3.	Notify the respondent(s) and real party(ies) of the date and time of the ex parte hearing on the alternative writ pursuant to rule 3.1203 of the California Rules of Court. Include the details of this notification in the declaration regarding notice pursuant to rule 3.1204. **Note**: The Court prefers at least 48 hours' notice but, upon a showing of urgency, will accept less notice.
4.	If the assigned writ department does not require any of the documents listed above in Step 1 to be filed before the hearing, file and serve on all parties the documents and papers as soon as possible and no later than the time of the hearing.

If the court grants the application for an alternative writ, the court signs and files the proposed order directing issuance of the alternative writ that sets the petition for a hearing on the merits. The clerk then issues the proposed alternative writ with the date and time of the hearing and provides it to the petitioner after the petitioner has paid the issuance fee in Room 102. The writ must be served upon respondent(s) and real party(ies) in the same manner as a summons in a civil action unless the court expressly orders otherwise. (See CCP §§ 1073, 1096.) Once served, the writ must be filed with a proof of service.

Applying for a Continuance:

After a hearing has been set on a motion or on the merits of a petition, it may be continued only upon approval of the Court. If the continuance requires a change in the briefing schedule, such change must also be approved.

Step	Action
1.	Present a telephone request for a continuance of the hearing to the clerk in the assigned writ department, including the reason(s) for the continuance and any necessary changes in the briefing schedule. Present the request as far in advance of the scheduled hearing date as possible. Upon the court's approval, the clerk will provide available dates on the court's calendar to which the hearing may be continued.
2.	Promptly confer with all counsel to agree upon a mutually convenient hearing date from among the dates provided by the clerk and any necessary changes in the briefing schedule. If counsel cannot agree to a continuance, a new hearing date and/or changes in the briefing schedule, the party seeking the continuance may apply for a continuance by noticed motion.
3.	Promptly present to the court a stipulation signed by all parties, including the reason for the continuance, the agreed upon hearing date and any agreed upon changes in the briefing schedule, with a proposed order. Pay the filing fee for the stipulation pursuant to subdivision (c) of Government Code section 70617 in Room 102.
4.	When the stipulation and order has been signed and filed by the Court, serve the stipulation and order on all parties.

Note that these procedures do not apply when a motion is dropped from the calendar by the moving party. In such circumstances, the moving party must telephonically notify the court and all other parties as far as possible in advance of the date on which the motion is to be heard and send a confirming letter to the court with copies to the other parties.

Dismissing a Writ Petition:

Step	Action
1.	Promptly notify the assigned writ department pursuant to rule 3.1385 of the California Rules of Court when a writ proceeding is settled or otherwise disposed of.
2.	File a dismissal of the writ proceeding in the assigned writ department within 45 days after the date of the settlement pursuant to rule 3.1385(b) or after the date specified in the notice of conditional settlement pursuant to rule 3.1385(c).

Lodging an Administrative Record:

Step	Action
1.	When securing a date and time for a hearing on the merits of the petition, inform the clerk in the assigned writ department about the size of any administrative record in the case. Determine the department's preferences regarding the format, binding and container for the administrative record.
2.	Lodge the administrative record with the assigned writ department no later than 25 days prior to the hearing on the merits of a writ petition. If the record is not lodged by this time, some assigned writ departments may take the matter off calendar. Consult with the assigned writ department if you wish to lodge the administrative record more than 25 days before the hearing on the merits of a writ petition.
3.	Attach a cover sheet to the administrative record and any boxes containing the record that lists the: • Case name, • Case number, • Date and time of the hearing.

At the hearing on the merits of the petition, the court will mark the administrative record as an exhibit and admit it into evidence. At the conclusion of the proceedings on the petition, the court may return the administrative record to the party who lodged it or destroy it pursuant to CCP § 1952 through 1952.3 and subdivision (i) of CCP § 1094.5.

The Hearing on the Merits:

All hearings on writ petitions proceed by way of oral argument. If a party wishes to present oral testimony at the hearing, the party must obtain permission pursuant to rule 3.1306 of the California Rules of Court.

If the assigned writ department uses a tentative ruling system and posts a tentative ruling on the court day before the hearing on the writ petition, a party desiring to be heard must contact the clerk and request oral argument by the time designated in the posted tentative ruling. When requesting oral argument, the party must advise the clerk that all other parties have been notified.

Appearing by Telephone:

Parties may appear by telephone in accordance with Local Rule 2.04.

Note that some assigned writ departments permit telephonic appearances in hearings on motions only on a limited basis and in hearings on the merits of a writ petition only under compelling circumstances.

Preparing a Judgment and Peremptory Writ:

If the court denies the writ petition, the party designated by the court shall, pursuant to rule 3.1312 of the California Rules of Court, prepare, serve on all parties, and present to the court a judgment denying the petition.

If the court grants the writ petition*:*

Step	Action
1.	The party designated by the court prepares (1) a judgment granting the writ petition and (2) a peremptory writ. The peremptory writ includes a signature block for the clerk, not the judge.
2.	Pursuant to rule 3.1312 of the California Rules of Court, prepare, serve on all parties, and present to the court a judgment granting the petition and the peremptory writ. The judgment, when approved, will be signed by the court. The clerk will issue the peremptory writ and provide it to the petitioner for service upon respondent(s) and real party(ies) after the petitioner pays the issuance fee in Room 102.
3.	Serve a copy of both the judgment granting the writ petition and the peremptory writ on the respondent(s) and real party(ies). The writ must be served in the same manner as summons in a civil action. (CCP §§ 1073, 1096, 1107.)
4.	Return the original peremptory writ with a proof of service to the assigned writ department for filing.
5.	Prepare, serve, and file in the assigned writ department a notice of entry of judgment pursuant to CCP § 664.5(a).

EXHIBIT D

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SACRAMENTO

Gordon D. Schaber Superior Court, Department 32

JUDICIAL OFFICER: HONORABLE JAMES P. ARGUELLES

Courtroom Clerk: D.Ward CSR: None

26WM000028 March 10, 2026
1:22 PM

NEWANFORBI
vs
MACOMBER

MINUTES

APPEARANCES:

No Appearances

NATURE OF PROCEEDINGS: Court Order Vacating Hearing Scheduled on March 27, 2026

The hearing on the petition for writ of mandate in this matter (Petition), scheduled for March 27, 2026, at 3:30 p.m. is vacated.

Petitioner has not served the Petition upon the Respondent. Service by mail is insufficient to establish the Court's jurisdiction. Petitioner must serve the Petition in accordance with the rules of Civil Procedure. (See Code of Civil Procedure section 1096 [petitions for writ of mandate must be served in same manner as summons] and sections 413.10 through 417.40 [discussing service of summons].)

Until the Petition is served upon the parties, the Court cannot act on the Petition. (Code Civ. Proc., § 1088.5.) Accordingly, the above-entitled hearing on the merits of the Petition is vacated.

If Petitioner wishes to obtain a hearing on the merits of the Petition, he must first: (1) serve the Petition upon Respondent in compliance with the Code of Civil Procedure, and (2) furnish to the Court Proof of Service indicating that the Petition was served.

Certificate of Mailing is attached.

By: /s/ D. Ward
D. Ward, Deputy Clerk

Minutes of: 03/10/2026
Entered on: 03/10/2026

SUPERIOR COURT OF CALIFORNIA COUNTY OF SACRAMENTO	Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Gordon D. Schaber Superior Court 720 Ninth Street, Sacramento, CA 95814	
PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi	
DEFENDANT/RESPONDENT: Jeffrey Macomber	
CERTIFICATE OF MAILING	CASE NUMBER: 26WM000028

I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the Minute Order (Court Order Vacating Hearing Scheduled on March 27, 2026) upon each party or counsel named below by placing the document for collection and mailing so as to cause it to be deposited in the United States mail at the courthouse in Sacramento, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with the postage thereon fully prepaid, in accordance with standard court practices.

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Dated: 03/11/2026

By: */s/ D. Ward*
D. Ward, Deputy Clerk

EXHIBIT E

SUPERIOR COURT OF CALIFORNIA COUNTY OF SACRAMENTO	Court Use Only
COURTHOUSE ADDRESS: Gordon D. Schaber Superior Court 720 Ninth Street, Sacramento, CA 95814	
PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi	
DEFENDANT/RESPONDENT: Jeffrey Macomber	
NOTICE OF DEPARTMENT RELOCATION	CASE NUMBER: 26WM000028

The Sacramento Superior Court is transitioning operations from the Gordon D. Schaber and Hall of Justice buildings to the new Tani G. Cantil-Sakauye Courthouse through a phased move plan beginning on April 13, 2026. Visit the court's website at www.saccourt.ca.gov for the most current and up to date information regarding the transition.

The physical and mailing address of the new downtown courthouse is:

Tani G. Cantil-Sakauye Courthouse
500 G Street
Sacramento, CA 95814

Please take notice, effective April 20, 2026, Department 32 is moved to Department 13A at the Tani G. Cantil-Sakauye Courthouse. The Honorable James P. Arguelles remains presiding over Writ of Mandate cases currently assigned. All hearings currently scheduled or reserved after the effective date shall remain in place and will be heard in Department 13A.

Hon. James P. Arguelles
Department 13A
916-874-5682
dept13A@saccourt.ca.gov

Where remote appearances are permitted:
To join by Zoom Link - https://saccourt-ca-gov.zoomgov.com/j/16180485362
To join by phone dial (833) 568-8864 ID 16180485362

Please check the Civil Tentative Ruling in the case on the Public Portal located at www.saccourt.ca.gov prior to your hearing date to confirm appearances and/or any updates (including updates to the hearing date/time).

The Prerogative Writ Departments provide information to assist you in managing your case on the Court website at https://www.saccourt.ca.gov/civil/writ-departments.aspx.

Dated: 04/01/2026 By: /s/ D. Ward
D. Ward, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA COUNTY OF SACRAMENTO	Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Gordon D. Schaber Superior Court 720 Ninth Street, Sacramento, CA 95814	
PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi	
DEFENDANT/RESPONDENT: Jeffrey Macomber	
CERTIFICATE OF MAILING	CASE NUMBER: 26WM000028

I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the Notice of Department Relocation upon each party or counsel named below by placing the document for collection and mailing so as to cause it to be deposited in the United States mail at the courthouse in Sacramento, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with the postage thereon fully prepaid, in accordance with standard court practices.

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Dated: 04/01/2026

By: */s/ D. Ward*
D. Ward, Deputy Clerk

CERTIFICATE OF MAILING

EXHIBIT F

ELECTRONICALLY FILED
Superior Court of California
County of Sacramento
02/09/2026
By: C. Torres Deputy

HEARING DATE: March 27, 2026, 10:00 AM
Dept. 32 / Gordon D. Schaber Superior Court
Hon. James P. Arguelles

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **JEFFREY MACOMBER,** Secretary of CDCR, Respondent.	**Superior Court of California,** County of Sacramento **Case No. 26WM000028** **OPENING BRIEF IN SUPPORT OF PEREMPTORY WRIT OF MANDATE**

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF PETITION FOR PEREMPTORY WRIT OF MANDATE

Filed by Petitioner Brendan Ngehsi Newanforbi, In Pro Per

February 9, 2026

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I. INTRODUCTION

This proceeding for a writ of mandate pursuant to Code of Civil Procedure section 1085 addresses an unlawful substitution of categorical criteria by the California Department of Corrections and Rehabilitation ("CDCR") in place of the individualized assessment framework established by the Legislature for parole discharge. Petitioner Brendan Ngehsi Newanforbi challenges the Department's reliance on unauthorized "underground regulations" that override the evidence-based assessment framework enacted by the California Legislature.[1]

At the heart of this action lies a conflict between bureaucratic expediency and statutory duty. The Legislature, through Penal Code section 3008(d)(2), explicitly designed a flexible, discretionary system for sex offender parole supervision, mandating that treatment program duration be determined by clinical professionals and the courts—with a range extending "not less than one year, up to the entire period of parole." This statutory language reflects a legislative intent to tailor supervision to the specific risks and progress of the individual parolee.

The Department, however, has effectively rewritten this statute through internal policy. By enforcing a rigid "10-year/6.5-year" time-served requirement under Policy 19-03 (Amended) and maintaining a de facto policy that treatment completion is structurally "impossible" prior to discharge, the Department has converted the Legislature's discretionary "up to" into a mandatory "always." This substitution of fixed departmental criteria for individualized statutory analysis constitutes both a failure to perform a ministerial duty and an abuse of discretion under California law.

This case also presents a failure to proceed in the manner required by law. Effective April 17, 2025, the Department promulgated new regulations—15 Cal. Code Regs. § 3574—that formally recognize the possibility of early treatment completion and require specific procedural safeguards, including written findings of "good cause" for retention, that were absent from the Petitioner's December 1, 2025 Discharge Review Report. The Department's continued enforcement of its legacy policies in direct contravention of its own new regulations is arbitrary, capricious, and legally unsustainable.

Critically, this Petition does not ask the Court to substitute its judgment for that of the agency regarding the ultimate outcome of discharge. Rather, it seeks to compel the agency to exercise its discretion within the lawful boundaries set by the Legislature—free from the constraints of ultra vires policies. The California Supreme Court addressed precisely this type of challenge in In re Gadlin (2020) 10 Cal.5th 915, holding that categorical exclusions from parole rights are impermissible when the governing law mandates individualized assessment. The same principle applies here with equal force.

[1] "The length of the program shall be . . . not less than one year, up to the entire period of parole." Pen. Code § 3008(d)(2).

II. STATEMENT OF THE CASE

A. Factual Background and Parole History

Petitioner Brendan Ngehsi Newanforbi (CDC #BF3571) was released on parole on December 2, 2020, following incarceration for violations of Penal Code section 289(a)(1)(A) (Penetration with Force/Violence) and section 220(a)(1) (Assault with Intent to Commit Specified Sex Offense). Upon release, he was subject to registration under Penal Code section 290 and assigned a 10-year parole term, with a controlling discharge date of December 2, 2030.

For the five years preceding the challenged decision, the Petitioner remained under continuous parole supervision. His performance on parole demonstrates a trajectory of stability and compliance that the statutory scheme was designed to recognize. As of December 2025, his classification was "Category SA," and his California Static Risk Assessment (CSRA) score was 2—indicating "low risk" for recidivism. The CSRA score of 2 places Petitioner in the lowest recidivism risk category, consistent with CDCR's own risk assessment protocols and supporting discharge under risk-based criteria in 15 CCR § 3574(f).

The administrative record reflects the following key indicators of rehabilitation and stability:

- **Residence Stability:** The Petitioner maintained a stable residence with family in Stockton for over eight months, satisfying the "Residence Stability" objective of the discharge review criteria.
- **Treatment Progress:** Despite significant systemic disruptions—including approximately seven different clinicians over the five-year parole period and admissions by clinicians that completed homework assignments were lost—the Petitioner has actively participated in the Sex Offender Management Program (SOMP), advancing to the Core Phase, Block 1, Module 4 of 7. These changes interfered with continuity of care and consistent progress tracking, yet the Petitioner demonstrated persistence and compliance through ongoing engagement.
- **Social Affiliation:** He demonstrated affiliation with pro-social individuals and avoided new criminal conduct throughout his parole term.
- **Supervision History:** While the record notes technical violations related to GPS charging and treatment attendance, the Department did not revoke parole based on these violations.

B. The Challenged Discharge Denial

On December 1, 2025, the Division of Adult Parole Operations (DAPO) issued a Discharge Review Report (CDCR Form 1502-DR) denying the Petitioner's consideration for early discharge. The denial was not based on a holistic evaluation of the Petitioner's low risk score or his five years of stability. Instead, the "Unit Supervisor Comments" explicitly relied on two categorical barriers:

- **The Time-Served Bar (Policy 19-03):** The report stated: "Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision."
- **The "Incomplete Treatment" Bar:** The report cited "incomplete sex offender treatment" as a concurrent basis for denial—referencing a standard that, as demonstrated below, renders completion structurally impossible before discharge.

Crucially, the report failed to incorporate the procedural requirements mandated by the Department's own regulations that became effective months earlier in April 2025. There was no "Form 3043" outlining good cause for retention, no evidence of a Containment Team Meeting finding, and no consultation with a certified sex offender management professional regarding the appropriate duration of the program.

C. The Regulatory Landscape: 15 CCR § 3574

To fully appreciate the illegality of the December 2025 denial, one must examine the regulatory context. Following litigation in Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378), the Department adopted 15 California Code of Regulations section 3574, effective April 17, 2025. These regulations were intended to bring the Department into compliance with Penal Code section 3008(d) by formalizing the "Containment Model" and explicitly acknowledging that treatment completion is not inextricably linked to the discharge date.

The following table illustrates the stark disconnect between the requirements of 15 CCR § 3574 and what actually appeared in the Petitioner's Discharge Review Report:

15 CCR § 3574 Requirement	Dec. 1, 2025 Report – Actual
Early completion permitted (§ 3574(d))	Denied on categorical "impossibility" policy
Written "good cause" finding required	Absent – only citation to Policy 19-03
CDCR Form 3043 required	No Form 3043 attached or referenced
Treatment provider signature required	No provider signature or input documented
Containment Team Meeting (CTM) required	No CTM documented or referenced
Risk-based retention criteria (§ 3574(f))	No risk scores cited; time-bar dispositive
30-day notice to parolee	No notice provision included

This table is not incidental to the Petition. It is the core of it. Every column on the right represents a failure by CDCR to follow its own binding regulations—regulations adopted less than eight months before the denial at issue.

III. STANDARD OF REVIEW

A. Writ of Mandate Under Code of Civil Procedure § 1085

A traditional writ of mandate under Code of Civil Procedure section 1085 is the appropriate vehicle to compel a public official to perform a ministerial duty or to correct an abuse of discretion. To obtain relief, the petitioner must demonstrate: (1) a clear, present, and usually ministerial duty on the part of the respondent; and (2) a clear, present, and beneficial right in the petitioner to the performance of that duty. California Ass'n for Health Services at Home v. Dep't of Health Care Services (2012) 204 Cal.App.4th 676, 683.

While the ultimate decision to discharge a parolee involves an exercise of discretion, the duty to apply the correct legal standard in making that decision is ministerial. Mandate lies where an agency exercises its discretion under an unlawful standard or substitutes unauthorized categorical rules for the individualized analysis required by statute. Pomona Police Officers' Ass'n v. City of Pomona (1997) 58 Cal.App.4th 578, 583–84.

B. Abuse of Discretion and the "Manner Required by Law"

An abuse of discretion is established not only when an agency's decision is unsupported by evidence, but also when the agency "has not proceeded in the manner required by law." Pomona Police Officers' Ass'n v. City of Pomona (1997) 58 Cal.App.4th 578, 583; AIDS Healthcare Foundation v. L.A. County Dept. of Public Health (2011) 197 Cal.App.4th 693; see also Topanga Ass'n for a Scenic Community v. County of Los Angeles (1974) 11 Cal.3d 506, 514. As the California Supreme Court held in Yamaha Corp. of America v. State Bd. of Equalization (1998) 19 Cal.4th 1, while agencies possess expertise in their domains, the judiciary retains the ultimate power to interpret statutes. When an agency's policy contradicts the plain text of a governing statute, the agency has abused its discretion, and the court must intervene to enforce the legislative will.

IV. ARGUMENT

A. Exhaustion of Administrative Remedies Is Excused

The Department will likely assert, as a threshold matter, that the Petitioner has failed to exhaust administrative remedies. This argument fails under three independently sufficient doctrines, each of which has been endorsed by the California Supreme Court.

1. The Futility Exception Applies.

The futility exception to the exhaustion requirement applies when the petitioner can "positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Here, no inference is required. The December 1, 2025 Discharge Review Report explicitly states the basis for denial: "Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision." This language reflects a fixed, statewide policy—not a case-specific exercise of discretion. Any Form 602 administrative appeal would be reviewed by the same agency enforcing the same categorical policy. It is futile to ask an agency to overturn its own "underground regulation" through a grievance process designed for individual factual disputes, not systemic policy challenges.

The factual predicate for this conclusion is not speculative. In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order dated Mar. 20, 2023), CDCR officials testified under oath that sex offenders on parole cannot "complete" treatment before discharge. This sworn admission establishes CDCR's institutional position—a position that no internal grievance reviewer has the authority to override.

2. The Pure Question of Law Exception Applies.

The California Supreme Court has held that "[p]ure questions of law need not be exhausted administratively, particularly when the agency lacks authority to grant the relief sought." Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd. (2005) 35 Cal.4th 1072, 1080. The issues presented in this Petition are textbook pure legal questions:

(a) Does Penal Code section 3008(d)(2) authorize categorical, time-based bars to discharge eligibility?

(b) Does CDCR possess statutory authority to prohibit early program completion?

(c) Is Policy 19-03 ultra vires to the statutes it purports to implement?

These are questions of statutory interpretation and agency authority. They do not require factual fact-finding or the exercise of administrative expertise. They are matters for this Court.

3. The Administrative Remedy Is Inadequate.

The California Supreme Court has also held that "[o]ne need not exhaust inadequate remedies in order to challenge their sufficiency." Horn v. County of Ventura (1979) 24 Cal.3d 605, 611. The CDCR Form 602 grievance process cannot invalidate a regulation, declare a policy ultra vires, or compel the Department to disregard agency-wide directives. Only a court of law possesses the authority to do so. The administrative process is therefore not merely inadequate—it is structurally incapable of providing the relief sought here.

B. CDCR's Categorical Time-Bar Violates Penal Code § 3008(d)(2)

The Department's primary justification for denying discharge—the "10-year/6.5-year" rule embedded in Policy 19-03—is a categorical policy that finds no support in the governing statute. Penal Code section 3008(d)(2) establishes the framework for sex offender management programs on parole. Its text is unambiguous regarding the permissible range of treatment duration:

> *"The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court."* Pen. Code § 3008(d)(2).

1. The Canon Against Surplusage and the Meaning of "Up To."

A fundamental canon of statutory construction requires that "every word in a statute must be given effect." People v. Rizo (2000) 22 Cal.4th 681, 685. The Legislature's inclusion of the phrase "up to" in section 3008(d)(2) is not ornamental. It creates a discretionary range—a range that, by its plain meaning, explicitly contemplates that for some parolees, the appropriate duration of the treatment program will be less than the entire parole period.

If the Legislature had intended to mandate that all sex offenders remain in the program for their full parole term—or for a fixed percentage thereof (e.g., 6.5 years of a 10-year term)—it would have enacted language to that effect. It did not. Instead, it delegated the determination of duration to clinical professionals and the courts. By enforcing Policy 19-03, which imposes a mandatory minimum of 6.5 years for all parolees with 10-year terms regardless of individual progress, the Department renders the words "up to" complete surplusage. This violates the cardinal rule that courts—and agencies—must avoid interpretations that make statutory language meaningless. Lungren v. Deukmejian (1988) 45 Cal.3d 727, 735.

The point may be stated simply. If CDCR's policy is valid—that treatment duration is effectively coterminous with parole until discharge—then the statutory phrase "not less than one year, up to" serves no function whatsoever. A court must presume the Legislature intended that phrase to have meaning. The only logical meaning is that there exists a subset of parolees for whom the appropriate treatment duration is less than the full parole term. Policy 19-03 forecloses even the possibility of that subset existing.

2. In re Gadlin and the Prohibition on Wholesale Exclusions.

The California Supreme Court has repeatedly rebuked CDCR for attempting to curtail statutory parole rights through categorical administrative rules. In In re Gadlin (2020) 10 Cal.5th 915, the Court invalidated CDCR regulations that categorically excluded nonviolent sex offenders from parole consideration under Proposition 57. The Court held that "eligibility must be based on an inmate's current circumstances—not categorical rules applied without individual consideration." Id. at 928. The regulations created, in the Court's words, "wholesale exclusions from a constitutional right. That is impermissible." Id.

Although Gadlin addressed parole consideration for inmates rather than discharge for supervisees, its reasoning applies with equal force here. In both contexts, the Department attempted to use a blanket exclusion—based on penal status—to override a statutory or constitutional directive for flexible, individualized review. The 10-year/6.5-year rule is precisely the type of "wholesale exclusion" condemned in Gadlin. It prejudges every parolee with a 10-year term as ineligible for discharge until a fixed date, regardless of their "current circumstances," their individual progress, or the "good cause" findings required by law.

This principle was recently reaffirmed in In re Leman (2021) 66 Cal.App.5th 200. The court held that CDCR's reliance on a "one-size-fits-all" policy, rather than an "individualized consideration of [the parolee's] current risk to public safety," constitutes an abuse of discretion. Id. at 215. The court emphasized that an agency substituting generalized classifications for statutorily mandated individualized assessment violates its duty to proceed in the manner required by law. The identical flaw infects the denial here: CDCR applied categorical time bars and structural impossibility rules rather than assessing the Petitioner's actual risk, progress, and rehabilitation.

3. In re Taylor and the Requirement for Particularized Circumstances.

Similarly, in In re Taylor (2015) 60 Cal.4th 1019, the Supreme Court struck down blanket residency restrictions imposed on all sex offenders on parole, holding that such restrictions are permissible "only when [they are] based on, and supported by, the particularized circumstances of each individual parolee." Id. at 1037. The Court emphasized that while public safety is a compelling interest, it does not justify arbitrary administrative barriers that bear no rational relationship to an individual's actual risk.

The Petitioner's denial was not based on his particularized circumstances. To the contrary, his circumstances—stable residence, low risk score, five years of supervision without revocation, and active treatment participation—militated in favor of discharge. He was denied solely because of a generalized policy rule applied mechanically to his sentence structure. Under Taylor, this failure to conduct an individualized assessment constitutes an invalid exercise of agency power.

C. CDCR's "Completion Impossible" Policy Violates § 3008(d)(2) and 15 CCR § 3574

The second categorical bar cited in the December 1, 2025 Discharge Review Report—"incomplete sex offender treatment"—is not a reflection of the Petitioner's clinical status alone. It is the product of a structural policy that renders pre-discharge completion impossible by design. This Court need not speculate about the existence of such a policy; it has been established under oath.

1. The Policy Was Established Through Sworn Testimony.

In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order dated Mar. 20, 2023), the superior court held an evidentiary hearing at which CDCR officials and treatment provider representatives testified. The court found as a matter of fact that CDCR's practice was to require every registrant-parolee to participate in the treatment program for the entire term of parole, "apparently without reference to the individualized performance of each parolee." The court concluded that this practice "vitiates the Legislature's directive" in section 3008(d). The Dwyer record further established that no parolee had ever been allowed to "complete" the sex offender treatment program prior to discharge under CDCR's unwritten rules.

This is not a relic of the past. The December 1, 2025 Report in this case cited "incomplete sex offender treatment" as a basis for denial—while simultaneously applying a framework under which completion before discharge is structurally unattainable. The policy persists. Petitioner's treatment provider, HOPE, was the subject of that very testimony in Dwyer. Its "continuous connection" mandate is the direct cause of Petitioner's "incomplete" status cited in the December 2025 Report, proving the policy's active application in his case long after the Dwyer court condemned it.

2. CDCR's Own Regulations Repudiate the Policy.

Effective April 17, 2025, CDCR adopted 15 Cal. Code Regs. § 3574, which states in subsection (d): "Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by PC section 3008(d)." This language is a direct and formal repudiation of the "completion impossible" stance. It is not ambiguous. It is not incidental. It is the regulation's explicit acknowledgment that the law has always permitted—and indeed contemplated—early completion.

The Department cannot have it both ways. It cannot promulgate a regulation in April 2025 explicitly permitting early completion, and then deny a parolee in December 2025 on the ground that completion is impossible. To do so is the definition of arbitrary and capricious agency action. See Yamaha Corp. of America v. State Bd. of Equalization (1998) 19 Cal.4th 1, 7 ("An agency regulation that is inconsistent with the statute under which it is adopted is void."); see also Morris v. Williams (1967) 67 Cal.2d 733, 737 (courts must strike down agency practices contradicting statute).

3. The December 1 Report Violates § 3574's Procedural Requirements.

Section 3574(f) provides that any decision to retain a supervised person in treatment must be "supported by good cause" as defined in Penal Code section 3000, documented in writing on CDCR Form 3043, signed by both the treatment provider and the parole agent, and delivered to the supervised person within 30 days. The Petitioner's Discharge Review Report contains none of these elements. There is no Form 3043. There is no treatment provider signature. There is no articulated "good cause" analysis. There is no delivery. This is not a minor procedural deficiency. The requirement for a treatment provider's signature ensures that clinical experts—not custodial agents alone—participate in the duration decision, exactly as section 3008(d)(2) requires. By bypassing this check, the Department removed the "certified sex offender management professional" from the decision-making loop entirely.

These structural and policy barriers are compounded by failures in treatment delivery attributable to CDCR and its contracted providers. The Petitioner's experience of approximately seven clinician changes over five years—coupled with lost homework—demonstrates a profound lack of continuity that the California Sex Offender Management Board (CASOMB) guidelines seek to prevent. CASOMB's Guidelines for Transfer of Clients between Programs (July 2024) recognize that provider changes "may interfere with the consistency of an individual's containment team," disrupting treatment plans, prior successes, and motivation, and mandate steps like record transfers, discharge summaries, and collaborative decisions with parole to mitigate harm. CASOMB's Treatment Completion Guidelines (April 2018) emphasize that treatment duration must be determined through individualized assessment by the containment team, focusing on progress in treatment modules, risk reduction, and dynamic factors rather than arbitrary time minimums. These standards contemplate flexible duration and support early completion for offenders demonstrating sufficient rehabilitation—precisely the individualized framework § 3008(d)(2) mandates and § 3574 implements. CDCR's Policy 19-03 ignores this expert guidance, and the fragmented care prevented the consistent, evidence-based input from a certified professional required by § 3008(d)(2) and § 3574(f), further tainting the denial.

Where treatment records are fragmented, reset, or lost due to repeated provider turnover, CDCR cannot establish by substantial evidence that continued treatment is clinically necessary, rather than administratively prolonged. The Petitioner's advancement to Core Phase, Block 1, Module 4 of 7—despite these systemic disruptions—demonstrates good-faith participation and progress. CDCR's reliance on "incomplete treatment" punishes the Petitioner for deficiencies caused by the Department's own failures in record-keeping and provider continuity, rendering the denial arbitrary and unsupported by substantial evidence.

D. Policy 19-03 Is an Invalid "Underground Regulation"

Independent of its conflict with the governing statutes, Policy 19-03 is void as an "underground regulation" that was never adopted through the procedures required by the California Administrative Procedure Act.

The APA defines a "regulation" as every rule, standard, or order of general application adopted by a state agency to implement, interpret, or make specific the law it enforces. Gov. Code § 11342.600. Regulations must be adopted through a formal notice-and-comment process to ensure public transparency and legal vetting. A rule that meets the definition of a regulation but has not been formally adopted is an "underground regulation"—and it is void. Tidewater Marine Western, Inc. v. Bradshaw (1996) 14 Cal.4th 557, 571.

The California Supreme Court in Tidewater established a two-part test to identify underground regulations: (1) Does the rule apply generally, rather than to a specific case? (2) Does the rule implement, interpret, or make specific the law enforced by the agency? Policy 19-03 satisfies both prongs. First, it applies generally to all parolees with a 10-year term—it is not an adjudication of a specific case but a blanket standard. Second, it interprets and "makes specific" the broad "up to" language of Penal Code section 3008(d) by imposing a concrete minimum duration (6.5 years) that the statute itself does not contain.

Because Policy 19-03 was never adopted through the APA process—unlike the new Section 3574, which was—it is an illegal underground regulation. The Department cannot rely on an invalid rule to justify the deprivation of the Petitioner's statutory right to an individualized assessment. As the Court in Tidewater observed, an agency does not have the power to "add requirements" to a statute through internal policy manuals. See also California Hotel & Motel Ass'n v. Industrial Welfare Comm'n (1979) 25 Cal.3d 200, 212.

E. CDCR Violated Its Ministerial Duty to Apply the Correct Legal Standard

The foregoing arguments converge on a single, controlling principle: the duty to apply the correct legal standard is ministerial, even where the ultimate decision involves discretion. AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health (2011) 197 Cal.App.4th 693, 700. When an agency is required by statute to apply specific criteria in reaching a decision, the agency's obligation to use those criteria—rather than substitute its own policy-based criteria—is a ministerial duty enforceable by mandate. Id.

As the California Supreme Court held in People v. Superior Court (Laff) (2001) 25 Cal.4th 703, 734, "the determination of whether to [grant a benefit] is discretionary, but the duty to apply the correct criteria in making that determination is ministerial." Here, the correct criteria are the individualized factors set forth in § 3008(d)(2) and § 3574—clinical progress, risk assessment, containment team input, and good cause findings. The unauthorized criteria are Policy 19-03's categorical time bars and the structurally impossible completion standard. CDCR's failure to apply the correct, statutorily mandated criteria is a ministerial duty violation remediable by mandate.

This principle has direct application here. CDCR possessed discretion to weigh the Petitioner's risk level, his compliance history, his treatment progress, and the other individualized factors contemplated by Penal Code section 3008(d)(2) and 15 CCR § 3574. CDCR did not possess discretion to substitute categorical time-based bars for that individualized inquiry. The duty to use the statutory factors—rather than Policy 19-03's mechanical formula—is ministerial. It failed to perform that duty. By applying a rigid time-bar and an impossible completion standard, the Department abdicated that discretion entirely. A ministerial duty to exercise discretion cannot be satisfied by a refusal to exercise it. See Rodriguez v. Solis (1991) 1 Cal.App.4th 495, 502.

The Court of Appeal in Pomona Police Officers' Ass'n v. City of Pomona (1997) 58 Cal.App.4th 578, 583–84, confirmed that mandate lies to correct an agency that "has not proceeded in the manner required by law." Here, the manner required by law was an individualized assessment conducted by—or at least in consultation with—a certified sex offender management professional, documented through the procedures of 15 CCR § 3574. The December 1, 2025 Report reflects none of that. It reflects a mechanical application of a categorical rule. That is not a failure of discretion; it is a failure to exercise discretion at all—and mandate is the appropriate remedy. See also Rodriguez v. Solis (1991) 1 Cal.App.4th 495, 502 (mandate lies when agency substitutes unauthorized criteria for statutory requirements).

F. The December 1, 2025 Decision Is "Tainted" and Must Be Vacated

The Department may attempt to argue that the denial should stand because the Petitioner had technical parole violations—GPS charging issues and a treatment attendance issue. This argument fails under the well-established "taint" doctrine of California administrative law.

1. A Decision Based Partly on Improper Grounds Must Be Set Aside.

The Court of Appeal held in California Highway Patrol v. Superior Court (2008) 158 Cal.App.4th 726, 735, that when an administrative decision rests on multiple grounds and at least one is improper, the decision must be set aside. The reasoning is that a reviewing court cannot determine with certainty that the agency would have reached the same result absent the improper consideration. The appropriate remedy is vacatur and remand—not judicial speculation about what the agency might have done.

Here, the December 1, 2025 denial rests on multiple grounds. Two of them are demonstrably improper: the 6.5-year time bar (ultra vires under Tidewater and inconsistent with section 3008(d)(2)) and the incomplete treatment standard (structurally impossible under the pre-2025 policy, and formally repudiated by § 3574(d)). The remaining grounds—technical violations and unemployment—may or may not, standing alone, constitute sufficient basis for denial under a properly conducted individualized review. But because the decision is inextricably tainted by the improper criteria, it cannot be upheld.

2. The Improper Criteria Were Dispositive.

This is not a close case on the application of the taint doctrine. The Report states plainly: "Newanforbi is not eligible for EDC at this time due to having a 10-year parole term." The Report's use of the term "not eligible" is dispositive. It reveals a threshold eligibility determination made before any holistic review of Petitioner's individual circumstances. The Report's use of "not eligible" language confirms the categorical bar was dispositive, not supplementary—precluding any meaningful individualized review. Under the taint doctrine, this foundational reliance on unlawful criteria requires vacatur without speculation. California Highway Patrol v. Superior Court (2008) 158 Cal.App.4th 726, 735. The subsequent notes on technical violations are post-hoc justifications for a decision already reached on unlawful grounds. This sequence confirms that the taint is not incidental; it is foundational. The Policy 19-03 bar was not a supplementary consideration but the determination that foreclosed any individualized analysis from taking place.

Because the "incomplete treatment" finding rests on records compromised by CDCR's own failures in continuity and documentation—specifically, seven clinician changes over five years and the admitted loss of completed homework—that ground is independently invalid and further taints the discharge denial. An agency cannot penalize an individual for deficiencies caused by the agency's own systemic failures. The fragmented treatment records prevent any reliable determination of the Petitioner's actual clinical status, rendering the "incomplete treatment"

rationale arbitrary and unsupported. This independent taint reinforces the need for vacatur and remand under proper procedures.

Moreover, the technical violations themselves were treated by CDCR as insufficiently serious to warrant revocation. If the Department did not consider the violations grave enough to revoke parole, it is difficult to conceive how they would, standing alone, justify denial of discharge eligibility—particularly for a parolee with a low risk score and five years of stable supervision.

3. The Remedy Is Vacatur and Remand.

Under the taint doctrine, the Court should not attempt to "save" the denial by speculating that the Department would have reached the same result using only proper criteria. See JKH Enterprises, Inc. v. Dept. of Industrial Relations (2006) 142 Cal.App.4th 1046, 1058. The appropriate remedy is vacatur of the December 1, 2025 Discharge Review Report and remand for a new determination —one conducted under the individualized criteria of Penal Code section 3008(d)(2) and the procedural requirements of 15 CCR § 3574. See also Topanga Ass'n for a Scenic Community v. County of Los Angeles (1974) 11 Cal.3d 506, 514–15 (agency must articulate findings supporting decision under proper legal standard; decision lacking proper legal basis must be set aside).

G. Petitioner Has a Clear Beneficial Right to a Lawful Determination

The second element of a mandate action—a clear, present, and beneficial right in the petitioner—is readily established. Penal Code section 3008(d)(2) creates a right to have the duration of the sex offender management program determined through an individualized assessment by a certified professional. 15 CCR § 3574 creates correlative procedural rights: to a Containment Team Meeting, to written "good cause" for retention on Form 3043, and to 30-day notice. The December 1, 2025 Report provided none of these.

Moreover, the Petitioner has a liberty interest in freedom from unlawful prolongation of parole supervision. While there is no constitutional right to parole discharge per se, once a state establishes a statutory scheme for early discharge—as California has done through Penal Code sections 3000, 3001, and 3008—it creates a liberty interest that is protected by the Due Process Clause. Greenholtz v. Inmates of Nebraska Penal and Correctional Complex (1979) 442 U.S. 1; In re Lawrence (2008) 44 Cal.4th 1181. Ongoing parole supervision subjects the Petitioner to GPS monitoring, residency restrictions, and the constant threat of re-incarceration for technical violations. Prolonging that supervision beyond what the law authorizes—through policies that are nowhere in the statute—is not a neutral administrative act. It is a deprivation of liberty that the law does not sanction.

This Court, in Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378, Order dated Dec. 13, 2023), overruled CDCR's demurrer to a petition presenting these identical legal theories. In doing so, it necessarily found that a parolee has standing and a beneficial right to challenge categorical discharge policies as ultra vires. That ruling validates both the procedural vehicle and the substantive claims presented here.

V. CONCLUSION AND PRAYER FOR RELIEF

The Department of Corrections and Rehabilitation has engaged in an unlawful substitution of categorical criteria for the individualized assessment required by statute. By applying the "10-year/6.5-year" rule and the "impossible completion" standard, the Department violated the plain text of Penal Code section 3008(d)(2), ignored the mandate of In re Gadlin and In re Taylor against categorical exclusions, and failed to follow its own binding regulations under 15 CCR section 3574.

The Petitioner has met all requirements for the issuance of a writ of mandate. The Department has a ministerial duty to apply the correct statutory criteria. It failed to do so. The Petitioner has a beneficial right to an individualized assessment. He was denied one. The decision is tainted by reliance on improper criteria. It must be vacated.

Accordingly, Petitioner respectfully requests that this Court:

1. **Issue a Peremptory Writ of Mandate** commanding Respondent to vacate and set aside the Discharge Review Report dated December 1, 2025.
2. **Order a New Discharge Review** to be conducted within 30 days of the issuance of the Writ, strictly applying the individualized criteria of Penal Code section 3008(d)(2) and 15 CCR section 3574, and without reference to Policy 19-03 (Amended) or any categorical time-served bar.
3. **Order a Properly Constituted Containment Team Meeting** prior to any new discharge review, as required by 15 CCR § 3574(c), and that the CTM's findings form the basis of the new determination.
4. **Compel Procedural Compliance,** specifically requiring that any decision to retain the Petitioner in treatment be supported by written "good cause" on CDCR Form 3043, signed by a certified treatment provider and parole agent, as required by 15 CCR § 3574(f).
5. **Issue a Declaratory Judgment** finding that CDCR Policy 19-03 (Amended), to the extent it imposes a mandatory minimum time-served requirement for parole discharge, is an invalid "underground regulation" adopted in violation of the Administrative Procedure Act and is ultra vires to Penal Code section 3008(d).
6. **Retain Jurisdiction** over this matter to enforce compliance with the Writ.

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi
Brendan Ngehsi Newanforbi
Petitioner, In Pro Per
February 9, 2026

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